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CASE #	CASE NAME	HEARING NAME
CVMV2605685	HAWKINS vs RIVERSIDE COUNTY OFFICE OF EDUCATION, A PUBLIC ENTITY	HEARING ON PETITION FOR RELIEF PURSUANT TO GOVERNMENT CODE 946.6

Tentative Ruling:

Moving party: Petitioner Luquanda N. Hawkins

Responding party: Respondent Riverside County Office of Education

Petitioner Luquanda N. Hawkins (“Petitioner”) alleges that Riverside County Office of Education (“RCOE”) employed her as a principal of a learning center beginning 8/1/22. Petitioner alleges that she was repeatedly exposed to dangerous conditions involving violent students, physical assaults, weapons, drugs, and life-threatening situations. She went on medical leave on 8/1/25 for emotional and psychological distress. She allegedly submitted a formal complaint to Defendant’s HR department on 8/5/25, presented a claim to the County of Riverside on 2/27/26, and learned by 3/9/26 that RCOE was a separate public entity. Petitioner then submitted a late-claim application to RCOE on 3/17/26. RCOE did not respond to the application within 45 days.

The attached 3/17/26 claim identifies 5 causes of action: (1) intentional infliction of emotional distress; (2) negligence; (3) negligent supervision; (4) dangerous condition of public property; and (5) violation of public duty (based on unspecified Labor Code and other occupational safety provisions). (Exhibit C to the Petition.) Petitioner has also separately filed a complaint on 5/21/26, asserting 9 FEHA causes of action and an intentional infliction of emotion distress claim. (See Case no. CVRI 2603059.)

Now, Petitioner asks for an order relieving her from the claim presentation requirements.

She argues that her failure to present a claim to RCOE within 6 months resulted from excusable neglect and, alternatively, mental incapacity. She asserts that she diligently pursued administrative remedies (attending an EEOC appointment and filing complaints with state/federal agencies), mistakenly believed that those administrative filings satisfied all procedural requirements, and that she later presented her claim to the County. She also asserts that RCOE has actual notice of the underlying events, and that RCOE cannot demonstrate prejudice.

In opposition, RCOE argues that Petitioner and her counsel failed to exercise reasonable diligence. RCOE asserts that Petitioner should have known the identity of her employer for the past 3 years and counsel could have researched the identity of the entity. RCOE contends that Petitioner’s anxiety and depression did not establish statutory mental incapacity, and allowing additional late claims would prejudice RCOE.

In reply, Petitioner argues that she retained counsel only after the 6-month period had already expired. She argues that she promptly pursued the claim process and corrected the entity mistake after retaining counsel. She further argues that RCOE identifies no lost evidence or impaired defense. Petitioner also objects that RCOE filed its opposition under the civil action's case number (CVRI 2603059) rather than the petition's case number (CVMV 2605685).

On 7/28/26, the court found Respondent's opposition (filed under a different case number) untimely but exercised discretion to consider the late opposition and allowed Petitioner to file a reply.

Analysis

At the heart of this Petition is whether Petitioner's failure to present a timely claim to the correct entity constitutes "excusable neglect" under Government Code section 946.6.

The Government Claims Act (Gov. Code, § 810 et seq.) requires that any claim for money or damages against a public entity be presented to that entity within six months of the accrual of the cause of action as a prerequisite to filing a lawsuit. (Gov. Code, §§ 911.2(a), 945.4.) If a timely claim is not filed, the claimant may, within one year of the accrual of the cause of action, apply to the public entity for leave to present a late claim. (Gov. Code, § 911.4.) If the entity denies that application, the claimant has six months to petition the court for an order relieving them from the claim presentation requirement. (Gov. Code, § 946.6(b).)

The court *shall* grant relief under section 946.6 if it finds that: (1) the application to the entity was made within a reasonable time not to exceed one year, and that (2) the failure to present a timely claim was due to "mistake, inadvertence, surprise, or excusable neglect." (Gov. Code, § 946.6(c)(1).) The petitioner bears the burden of establishing these prerequisites by a preponderance of the evidence. (*Rodriguez v. County of Los Angeles* (1985) 171 Cal.App.3d 171, 175.) The showing required is the same as that for relief from default under Code of Civil Procedure section 473. (*Ebersol v. Cowan* (1983) 35 Cal.3d 427, 435.)

To show mistake or excusable neglect by a preponderance of the evidence, "[a] petitioner or counsel for a petitioner must show more than the mere failure to discover a fact until too late; he or she must establish the failure to discover that fact in the use of reasonable diligence." (*Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1783.) Excusable neglect is also that "neglect that might have been the act or omission of a reasonably prudent person under the same or similar circumstances." (*Ebersol v. Cowan* (1983) 35 Cal.3d 427, 435.)

Here, Petitioner filed her late-claim application within one year and promptly after the County identified the correct entity. Here, the petition alleges that Petitioner was placed on medical leave effective 8/1/25 and describes continuing conduct through 8/1/25. Using 8/1/25 as the accrual date, Petitioner filed her late-claim application within one year of accrual.

But the entity mistake does not explain her failure to act within the *original* 6-month period. Petitioner, in her petition, admits that she first presented a government claim to the County on 2/27/26, “approximately one week *after* the six-month deadline.” (Petition, p. 7, emphasis added.) Petitioner relies on *Bettencourt v. Los Rios Community College Dist.* (1986) 42 Cal.3d 270 to argue that her mistake “is precisely the kind of mistake that constitutes excusable neglect.” (*Id.*, p. 9.) However, *Bettencourt* is distinguishable. There, counsel investigated promptly and presented a claim to the wrong public entity within the *original* claim period. (*Bettencourt v. Los Rios Community College Dist.*, *supra*, 42 Cal.3d at 273-75.) In *Bettencourt*, counsel first presented a claim with the State Board of Control within the then-applicable 100-day period, but named the wrong public entity. (*Bettencourt v. Los Rios Community College Dist.*, *supra*, 42 Cal.3d at 273-75.)

Petitioner’s pursuit of EEOC and other state/federal administrative remedies show that she pursued her discrimination allegations. However, the evidence does not show that she sought advice concerning a government tort claim during the 6-month period. The records also present no information that might reasonably cause Petitioner to believe that an EEOC filing satisfied the requirements of the Government Claims Act. Mere lack of knowledge of the claim presentation requirement is insufficient to support relief under Gov. Code § 946.6 and does not establish excusable neglect. (*Garcia v. Los Angeles Unified School Dist.* (1985) 173 Cal.App.3d 701, 708.)

Petitioner also fails to show mental incapacity under Gov. Code § 946.6(c)(4). The record suggests some psychological diagnoses and medical leave, but it does not show incapacity throughout the claim period. Nor does it make sufficient showing that the disability prevented her from presenting a claim. Petitioner’s ability to file other administrative complaints during that period also weighs against her incapacity arguments.

Since Petitioner has not first established mistake, excusable neglect, or incapacity, the court denies the petition. The court need not reach Respondent’s arguments regarding prejudice.

Claims brought under California’s Fair Employment and Housing Act (“FEHA”) (Gov. Code, § 12900 et seq.) are not subject to the claim presentation requirements of the Government Claims Act. (*Garcia v. Los Angeles Unified School Dist.* (1985) 173 Cal.App.3d 701 [“Actions brought under the Fair Employment and Housing Act (FEHA) ... have also been held exempt from the claim-presentation requirements of the general tort claims act.”]) FEHA has its own statutory scheme for employment discrimination claims. (*Id.* at 710.) Therefore, to the extent that Petitioner pursues FEHA claims, Petitioner needs no section 946.6 relief for those.

Summary

Deny the petition as to the 5 causes of action identified in the 3/17/26 claim because Petitioner has not established excusable neglect or qualifying incapacity. Any independently pled FEHA causes of action do not require section 946.6 relief.

Case dismissed.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2408331	GUERRERO VELAZQUEZ vs PRITCHARD SPORTS & ENTERTAINMENT GROUP, LLC,	MOTION TO COMPEL PLAINTIFF TO APPEAR FOR DEPOSITION AND REQUEST FOR MONETARY SANCTIONS

Tentative Ruling:

Moving party: Defendants Pritchard Sports & Entertainment Group, LLC;
Samuel Salinas; and Lisa Avalos

Responding party: Plaintiff Aurora Guerrero Velazquez

This is a Fair Employment and Housing Act ("FEHA") and wage and hour matter. Aurora Guerrero Velazquez ("Plaintiff") was hired by Pritchard Sports & Entertainment Group, LLC ("Pritchard") as a custodian. While at work, on two separate occasions, Plaintiff fainted and hit her head. She had to take short medical leave of absences due to these incidents. She contends that she was harassed by her supervisor Lisa Avalos ("Avalos") for taking leave. She alleges that she was retaliated against for taking leave and was required to work outside in over 90-degree weather. While working in these conditions, Avalos belittled and harassed her. She was unable to cope with the harassment and dangerous working conditions and left work early. The next day, her manager Samuel Salinas ("Salinas"), attempted to pressure her to sign a disciplinary warning for leaving work early. When she attempted to tell Salinas about the harassment, she was terminated.

The complaint asserts the following causes of action: (1) discrimination; (2) harassment; (3) retaliation; (4) failure to prevent discrimination, harassment, and retaliation; (5) failure to provide reasonable accommodations; (6) failure to engage in a good faith interactive process; (7) declaratory relief; (8) wrongful termination in violation of public policy; (9) violation of the Ralph Civil Rights Act; (10) violation of the Tom Bane Civil Rights Act; (11) negligent supervision and retention; (12) failure to pay wages; (13) failure to provide meal and rest periods; (14) failure to provide itemized wage and hour statements; (15) waiting time penalties; and (16) unfair competition.

Pritchard, Avalos, and Salinas bring this motion seeking to compel Plaintiffs' deposition. They contend that Plaintiff has failed to appear at two properly noted and agreed upon depositions. They seek sanctions in the amount of \$18,373. No memorandum of points and authorities has been filed with this motion.